

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 171 By: Kirt and Stanley of the
Senate
3
and
4
Hilbert of the House
5
6

7 An Act relating to the State Capitol Building;
8 directing the Department of Public Safety to create
and maintain security plan; amending 73 O.S. 2021,
9 Sections 176 and 345, which relate to the permanent
legislative liaison committee and the State Capitol
10 Repair Expenditure Oversight Committee;
disestablishing committees and directing appointment
11 of certain personnel; amending 74 O.S. 2021, Sections
4101, 4102, as amended by Section 1, Chapter 15,
12 O.S.L. 2024, 4103, 4104, 4105, 4108, and 4109 (74
O.S. Supp. 2024, Section 4102), which relate to the
13 State Capitol Preservation Commission; modifying
definitions; defining terms; modifying duties of the
14 Commission; modifying Commission membership;
establishing meeting and quorum requirements;
15 modifying Commission processes; providing oversight
duties; modifying duties of Capitol Architect and
16 Curator; providing for duties of the Office of
Management and Enterprise Services relating to the
17 State Capitol Building; providing for maintenance and
curation of State and Capitol Art Collection;
18 exempting certain projects from competitive bidding
requirements; updating statutory language; repealing
19 74 O.S. 2021, Sections 4106 and 4107, which relate to
Commission cooperation and administrative
20 requirements; providing for codification; and
declaring an emergency.

21
22 AUTHOR: Remove Senator Kirt as principal Senate author and replace
23 with Senator Gollihare
24

1 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
2 and insert:

3
4 "An Act relating to state government; amending
5 Section 1, Chapter 11, O.S.L. 2023 (74 O.S. Supp.
6 2025, Section 465), which relates to the
7 commissioning of peace officers; directing the
8 Commissioner of Public Safety to commission peace
9 officers in conjunction with the President Pro
10 Tempore of the Oklahoma State Senate or the Speaker
11 of the Oklahoma House of Representatives; providing
12 jurisdiction of commissioned officers; and providing
13 an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY Section 1, Chapter 11, O.S.L. 2023
16 (74 O.S. Supp. 2025, Section 465), is amended to read as follows:

17 Section 465. A. The Commissioner of Public Safety ~~may~~ shall,
18 in conjunction with either the President Pro Tempore of the Oklahoma
19 State Senate or the Speaker of the Oklahoma House of
20 Representatives, commission as peace officers ~~one member~~ no more
21 than two members of the security team of the Oklahoma State Senate
22 and ~~one member~~ no more than two members of the security team of the
23 Oklahoma House of Representatives, provided such commissioned
24 officers must obtain and maintain certification as full-time peace
officers pursuant to Section 3311 of Title 70 of the Oklahoma
Statutes.

1 B. Any such commissioned officers are hereby declared to be
2 peace officers of the State of Oklahoma and shall be so deemed and
3 taken in all courts having jurisdiction of offenses against the laws
4 of the state. Such commissioned officers shall have the powers and
5 authority now and hereafter vested by law in other peace officers,
6 including the power of arrest, enforcement of the criminal laws of
7 this state, search and seizure, and the authority for serving or
8 execution of civil process.

9 C. The jurisdiction of such commissioned officers shall ~~include~~
10 ~~all powers of arrest granted to the sergeant at arms as set forth in~~
11 ~~Section 773 of Title 74 of the Oklahoma Statutes, but the~~
12 ~~jurisdiction of such commissioned officers shall otherwise be~~
13 ~~limited to the Capitol building, grounds, and parking lots described~~
14 ~~in Sections 15.1 and 15.3 of Title 73 of the Oklahoma Statutes~~ be
15 pursuant to Sections 99 and 99a of Title 21 of the Oklahoma
16 Statutes, and shall include all powers of arrest granted to the
17 sergeant at arms as set forth in Section 773 of this title, but such
18 jurisdiction shall be effective only while in the performance of
19 official duties.

20 D. Any commission issued by the Commissioner pursuant to this
21 section shall be subject to all requirements set forth by the
22 Commissioner, and the Commissioner may limit the power and scope of
23 the commission. Further, the Commissioner may suspend or revoke the
24 commission for any reason, and the commission shall be deemed

1 terminated upon the commissioned officer's separation of service or
2 reassignment to another position outside the security team of their
3 respective bodies.

4 E. Such commissioned officers shall not be deemed to be
5 officers, agents, or employees of the Department of Public Safety,
6 and no action or omission by such commissioned officers shall be
7 deemed to be an action or omission of the Department of Public
8 Safety.

9 SECTION 2. This act shall become effective November 1, 2026."

10 Passed the House of Representatives the 29th day of April, 2026.

11
12
13 _____
Presiding Officer of the House of
Representatives

14
15 Passed the Senate the ____ day of _____, 2026.

16
17
18 _____
Presiding Officer of the Senate

1 ENGROSSED SENATE
2 BILL NO. 171

By: Kirt and Stanley of the
Senate

3 and

4 Hilbert of the House
5

6 An Act relating to the State Capitol Building;
7 directing the Department of Public Safety to create
8 and maintain security plan; amending 73 O.S. 2021,
9 Sections 176 and 345, which relate to the permanent
10 legislative liaison committee and the State Capitol
11 Repair Expenditure Oversight Committee;
12 disestablishing committees and directing appointment
13 of certain personnel; amending 74 O.S. 2021, Sections
14 4101, 4102, as amended by Section 1, Chapter 15,
15 O.S.L. 2024, 4103, 4104, 4105, 4108, and 4109 (74
16 O.S. Supp. 2024, Section 4102), which relate to the
17 State Capitol Preservation Commission; modifying
18 definitions; defining terms; modifying duties of the
19 Commission; modifying Commission membership;
20 establishing meeting and quorum requirements;
21 modifying Commission processes; providing oversight
22 duties; modifying duties of Capitol Architect and
23 Curator; providing for duties of the Office of
24 Management and Enterprise Services relating to the
State Capitol Building; providing for maintenance and
curation of State and Capitol Art Collection;
exempting certain projects from competitive bidding
requirements; updating statutory language; repealing
74 O.S. 2021, Sections 4106 and 4107, which relate to
Commission cooperation and administrative
requirements; providing for codification; and
declaring an emergency.

21 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

22 SECTION 2. NEW LAW A new section of law to be codified
23 in the Oklahoma Statutes as Section 93 of Title 73, unless there is
24 created a duplication in numbering, reads as follows:

1 The Department of Public Safety shall create a security plan for
2 the State Capitol Building and grounds. The plan shall be submitted
3 to the State Capitol Preservation Commission. An updated plan shall
4 be submitted every three (3) years.

5 The Department shall coordinate with the Office of Management
6 and Enterprise Services to implement and staff the approved security
7 plan.

8 SECTION 3. AMENDATORY 73 O.S. 2021, Section 176, is
9 amended to read as follows:

10 Section 176. A. There shall be ~~established~~ created within the
11 Legislative Service Bureau the position of a permanent ~~legislative~~
12 ~~liaison committee, composed of three (3) members from each house,~~
13 ~~appointed by the President Pro Tempore and Speaker, respectively~~
14 Capitol Liaison to the State Capitol Preservation Commission. The
15 ~~legislative liaison committee will~~ Capitol Liaison shall keep the
16 Legislature properly advised as to the activities of the Oklahoma
17 Capitol Improvement Authority and the Office of Management and
18 Enterprise Services by making such reports as ~~they deem~~ the Capitol
19 Liaison deems necessary to the appropriate committees and leadership
20 of both houses. All legislative studies concerning the
21 responsibilities or activities of the Oklahoma Capitol Improvement
22 Authority or the Office of Management and Enterprise Services and
23 all studies of activities or projects relating to the ~~Oklahoma~~ State
24 Capitol Complex shall be ~~considered by~~ presented to the ~~liaison~~

1 ~~committee created by this section~~ Capitol Liaison. The Oklahoma
2 Capitol Improvement Authority and the Office of Management and
3 Enterprise Services shall notify the ~~membership of the legislative~~
4 ~~liaison committee~~ Capitol Liaison in advance of any meeting in which
5 official or formal action is to be taken by furnishing the proposed
6 agenda in writing at least twenty-four (24) hours in advance of such
7 meeting.

8 B. The Oklahoma Capitol Improvement Authority and the Office of
9 Management and Enterprise Services shall provide such information,
10 records, testimony, or recommendations as the ~~committee~~ Capitol
11 Liaison may require.

12 C. All proposals for enhancement, modification, preservation,
13 or restoration of the State Capitol Building and grounds shall be
14 submitted to the Capitol Liaison. The Capitol Liaison shall submit
15 all proposals to the State Capitol Preservation Commission for
16 approval.

17 D. All proposals for changes in overall allocation in the State
18 Capitol Building or parking shall be submitted to the Capitol
19 Liaison. The Capitol Liaison shall submit all proposals to the
20 State Capitol Preservation Commission for approval, as defined by
21 Sections 15.1 and 15.3 of this title.

22 E. The Capitol Liaison shall be the primary liaison for all
23 tenants that occupy space in the State Capitol Building.

1 SECTION 4. AMENDATORY 73 O.S. 2021, Section 345, is
2 amended to read as follows:

3 Section 345. A. In addition to any other authorization
4 provided by law, the Oklahoma Capitol Improvement Authority is
5 authorized to issue obligations to acquire real property, together
6 with improvements located thereon, and personal property to
7 construct improvements to real property and to provide funding for
8 repairs, refurbishments and improvements to real and personal
9 property of the State Capitol Building in a total amount not to
10 exceed One Hundred Twenty Million Dollars (\$120,000,000.00). The
11 funds shall be used for the renovation, repair and remodeling of the
12 State Capitol Building.

13 B. The Authority may hold title to the property and
14 improvements until such time as any obligations issued for this
15 purpose are retired or defeased and may lease the property and
16 improvements to the Office of Management and Enterprise Services.
17 Upon final redemption or defeasance of the obligations created
18 pursuant to this section, title to the property and improvements
19 shall be transferred from the Oklahoma Capitol Improvement Authority
20 to the Office of Management and Enterprise Services.

21 C. For the purposes of paying the costs for construction of the
22 real property and improvements, and providing funding for the
23 project authorized in subsection A of this section, and for the
24 purpose authorized in subsection D of this section, the Authority is

1 hereby authorized to borrow monies on the credit of the income and
2 revenues to be derived from the leasing of such property and
3 improvements and, in anticipation of the collection of such income
4 and revenues, to issue negotiable obligations in a total amount not
5 to exceed One Hundred Twenty Million Dollars (\$120,000,000.00)
6 whether issued in one or more series. The Authority is authorized
7 to capitalize interest on the obligations issued pursuant to this
8 section for a period of not to exceed one (1) year from the date of
9 issuance. For subsequent fiscal years, it is the intent of the
10 Legislature to appropriate to the Office of Management and
11 Enterprise Services sufficient monies to make rental payments for
12 the purpose of retiring the obligations created pursuant to this
13 section. To the extent funds are available from the proceeds of the
14 borrowing authorized by this subsection, the Oklahoma Capitol
15 Improvement Authority shall provide for the payment of professional
16 fees and associated costs related to the project authorized in
17 subsection A of this section.

18 D. The Authority may issue obligations in one or more series
19 and in conjunction with other issues of the Authority. The
20 Authority is authorized to hire bond counsel, financial consultants,
21 and such other professionals as it may deem necessary to provide for
22 the efficient sale of the obligations and may utilize a portion of
23 the proceeds of any borrowing to create such reserves as may be
24

1 deemed necessary and to pay costs associated with the issuance and
2 administration of such obligations.

3 E. The obligations authorized under this section may be sold at
4 either competitive or negotiated sale, as determined by the
5 Authority, and in such form and at such prices as may be authorized
6 by the Authority. The Authority may enter into agreements with such
7 credit enhancers and liquidity providers as may be determined
8 necessary to efficiently market the obligations. The obligations
9 may mature and have such provisions for redemption as shall be
10 determined by the Authority, but in no event shall the final
11 maturity of such obligations occur later than ten (10) years from
12 the first principal maturity date.

13 F. Any interest earnings on funds or accounts created for the
14 purposes of this section may be utilized as partial payment of the
15 annual debt service or for the purposes directed by the Authority.

16 G. The obligations issued under this section, the transfer
17 thereof and the interest earned on such obligations, including any
18 profit derived from the sale thereof, shall not be subject to
19 taxation of any kind by ~~the State of Oklahoma~~ this state, or by any
20 county, municipality or political subdivision therein.

21 H. The Authority may direct the investment of all monies in any
22 funds or accounts created in connection with the offering of the
23 obligations authorized under this section. Such investments shall
24 be made in a manner consistent with the investment guidelines of the

1 State Treasurer. The Authority may place additional restrictions on
2 the investment of such monies if necessary to enhance the
3 marketability of the obligations.

4 ~~I. There is hereby created a State Capitol Repair Expenditure~~
5 ~~Oversight Committee. The proceeds from the sale of obligations~~
6 ~~issued pursuant to the provisions of this section and Section 1 of~~
7 ~~Enrolled House Bill No. 3168 of the 2nd Session of the 55th Oklahoma~~
8 ~~Legislature that are needed for repairs to the interior and exterior~~
9 ~~of the State Capitol shall be subject to the approval of the State~~
10 ~~Capitol Repair Expenditure Oversight Committee; provided, however,~~
11 ~~the expenditure of these proceeds shall be subject to a request for~~
12 ~~proposal process.~~

13 ~~The Committee shall be composed of nine (9) members as follows:~~

14 ~~1. Three persons to be appointed by the Governor, one of whom~~
15 ~~shall serve as chair of the Committee;~~

16 ~~2. Three legislators to be appointed by the Speaker of the~~
17 ~~House of Representatives, two of whom shall be members of the~~
18 ~~majority political party and one of whom shall be a member of the~~
19 ~~minority political party; and~~

20 ~~3. Three legislators to be appointed by the President Pro~~
21 ~~Tempore of the Senate, two of whom shall be members of the majority~~
22 ~~political party and one of whom shall be a member of the minority~~
23 ~~political party. Five members of the Committee shall constitute a~~
24 ~~quorum and the vote of five members shall be necessary for any~~

~~action taken by the Committee. The Committee shall be staffed by employees of the Office of Management and Enterprise Services. The Committee shall be subject to the Oklahoma Open Meeting Act.~~

~~J. The Committee shall deliver a preliminary plan for the renovation, repair and remodeling of the State Capitol to the Director of the Office of Management and Enterprise Services no later than December 31, 2014. The preliminary plan shall include the following components:~~

~~1. Establishment of the Office of Management and Enterprise Services' goal and criteria for use by the vendor; and~~

~~2. Selection criteria for the design-build team vendor to be selected through a Request For Proposal process.~~

~~K. Following receipt of the preliminary plan as approved by the Committee, the Office of Management and Enterprise Services shall solicit Requests For Proposals to select the vendor for the project.~~

~~L. The Committee shall deliver a final plan to the Director of the Office of Management and Enterprise Services no later than June 30, 2015. The final plan shall include the following components:~~

~~1. Approval of the final scope of work developed by the vendor; and~~

~~2. Approval of the project phasing developed by the vendor.~~

~~M. Following delivery of the final plan, the Committee shall continue to oversee the expenditure of proceeds from the sale of obligations issued pursuant to the provisions of this section and~~

~~Section 1 of Enrolled House Bill No. 3168 of the 2nd Session of the 55th Legislature, until completion of the renovation, repair and remodeling of the State Capitol. The Committee may also propose and approve amendments to the plan as it deems appropriate.~~

~~N. The Director of the Office of Management and Enterprise Services shall have responsibility to substantially implement the plan as presented by the Committee; provided, the President Pro Tempore of the Senate or the Speaker of the House of Representatives shall approve all proposed designs related to renovation, repair and remodeling of space within the State Capitol Building under the management and control of the Legislature and allocated to that officer's house of the Legislature pursuant to the provisions of Section 15.1 of this title, and any subsequent changes to such plans. Joint approval of the President Pro Tempore of the Senate and the Speaker of the House of Representatives shall be required for such plans for space under the management and control of the Legislature and not allocated to a specific house of the Legislature. Such approval shall be in writing.~~

~~O. Insofar as they are not in conflict with the provisions of this section, the provisions of Section 151 et seq. of this title shall apply to this section.~~

SECTION 5. AMENDATORY 74 O.S. 2021, Section 4101, is amended to read as follows:

1 Section 4101. As used in Sections 4101 through ~~4108~~ 4110.1 of
2 this title:

3 1. "Public areas" means those areas in the State Capitol
4 Building open to the general public for general visitation; ~~and~~

5 2. "Art" means fine art of museum quality representing the
6 highest quality of art objects available to include paintings,
7 murals, graphic arts, art photography and sculpture, aesthetically
8 aligned with recognized values, created by the conscious use of
9 skill and creative imagination;

10 3. "Design standards" means a document that is produced for the
11 purpose of guiding review of proposed alterations to the State
12 Capitol Building, grounds, and Governor's Mansion. Design standards
13 shall establish the acceptable level of finishes for the historic
14 fabrics, features, and materials in use in the State Capitol
15 Building, and specify alterations which, if followed, will provide
16 compatible design;

17 4. "Enhancement" means an increase or improvement upon the
18 quality, value, or extent of the original design intent of the State
19 Capitol Building, grounds, or Governor's Mansion;

20 5. "Grounds" means all land surrounding the State Capitol
21 Building and bordered by Lincoln Boulevard;

22 6. "Maintenance" means keeping spaces, structures, and
23 infrastructure in proper operating condition in a routine,
24 scheduled, or anticipated fashion to prevent failure or degradation;

1 7. "Modification" means any change to an existing physical
2 attribute of the State Capitol Building, grounds, or Governor's
3 Mansion;

4 8. "Preservation" means the act or process of applying measures
5 necessary to sustain the existing form, integrity, and materials of
6 a historic property including preliminary measures to protect and
7 stabilize the property, and focusing upon the ongoing maintenance
8 and repair of historic materials and features, rather than extensive
9 replacement and new construction; and

10 9. "Restoration" means the act or process of accurately
11 depicting the form, features, and character of the State Capitol
12 Building as the building appeared in 1917, and the dome in 2002, by
13 means of the removal of features from later periods in its history
14 and reconstruction of missing features from the restoration period.

15 SECTION 6. AMENDATORY 74 O.S. 2021, Section 4102, as
16 amended by Section 1, Chapter 15, O.S.L. 2024 (74 O.S. Supp. 2024,
17 Section 4102), is amended to read as follows:

18 Section 4102. There is hereby re-created the State Capitol
19 Preservation Commission which shall be responsible for planning and
20 supervising the preservation and restoration of the interior and
21 exterior of the State Capitol Building, hereinafter referred to as
22 the Capitol, and the Governor's Mansion. The Commission shall
23 control the display of art objects in public areas of the Capitol
24 jointly controlled by the Senate and the House of Representatives

1 and in the Governor's Mansion. The State Capitol Preservation
2 Commission shall provide the highest-quality maintenance,
3 restoration, preservation, enhancement, and modification of and
4 long-term planning for the interior and exterior of the State
5 Capitol Building and grounds for the perpetual use by the state
6 government and the enjoyment of all persons.

7 SECTION 7. AMENDATORY 74 O.S. 2021, Section 4103, is
8 amended to read as follows:

9 Section 4103. A. The State Capitol Preservation Commission
10 shall be composed of fifteen (15) members as follows:

11 1. ~~Three members shall be appointed by the~~ The Governor, or a
12 designee;

13 2. One member to be appointed by the Governor;

14 ~~2. 3. Three members shall be appointed by the~~ The Secretary of
15 State, or a designee;

16 4. The President Pro Tempore of the Senate, or a designee;

17 ~~3. 5. Three members shall be appointed by the~~ The Speaker of
18 the House of Representatives, or a designee;

19 ~~4. 6. One member shall be appointed by the~~ The Chief Justice of
20 the Oklahoma Supreme Court, or a designee; and

21 ~~5. 7. One member of the Senate appointed by the President Pro~~
22 Tempore of the Senate;

23 8. One former member of the Senate appointed by the President
24 Pro Tempore of the Senate;

1 9. One member of the House of Representatives appointed by the
2 Speaker of the House of Representatives;

3 10. One former member of the House of Representatives appointed
4 by the Speaker of the House of Representatives; and

5 11. The following shall be ex officio nonvoting members:

6 a. ~~Chairman~~ the Executive Director of the Oklahoma Arts
7 Council, or a designee,

8 b. ~~President~~ the Executive Director of the Oklahoma
9 Historical Society, or a designee,

10 c. the Capitol Architect and Curator,

11 d. ~~Superintendent of the Capitol~~ the Capitol Liaison, and

12 e. the Director of the Office of Management and
13 Enterprise Services, or a designee.

14 ~~B. The initial term of office of the appointed members shall be~~
15 ~~as follows:~~

16 ~~1. One of the members appointed by the Governor, the President~~
17 ~~Pro Tempore of the Senate, the Speaker of the House of~~
18 ~~Representatives, and the member appointed by the Chief Justice of~~
19 ~~the Oklahoma Supreme Court shall serve a one-year term;~~

20 ~~2. One of the members appointed by the Governor, the President~~
21 ~~Pro Tempore of the Senate, and the Speaker of the House of~~
22 ~~Representatives shall serve a three-year term; and~~

1 ~~3. One of the members appointed by the Governor, the President~~
2 ~~Pro Tempore of the Senate, and the Speaker of the House of~~
3 ~~Representatives shall serve a five-year term.~~

4 ~~The term of office for each successor shall be for five (5)~~
5 ~~years. Any member of the Legislature who is appointed to the~~
6 ~~Commission shall serve only as long as the member is a member of the~~
7 ~~respective house from which the member was appointed. All appointed~~
8 ~~voting and ex officio nonvoting members of the State Capitol~~
9 ~~Preservation Commission shall serve at the pleasure of their~~
10 ~~appointing authority.~~

11 ~~C. The Commission shall elect a chair and a vice-chair from its~~
12 ~~membership to serve for a period of two (2) years. The first chair~~
13 ~~of the Commission shall be the Governor, or a designee, who shall~~
14 ~~serve a term of two (2) years. Thereafter, the chair of the~~
15 ~~Commission shall rotate between the President Pro Tempore of the~~
16 ~~Senate, or a designee, the Speaker of the House of Representatives,~~
17 ~~or a designee, and the Governor, or a designee, for two-year~~
18 ~~increments in perpetuity. Members of the Commission shall not be~~
19 ~~compensated except for reimbursement as provided in the State Travel~~
20 ~~Reimbursement Act.~~

21 D. The Office of Management and Enterprise Services shall make
22 the necessary arrangements for support services for the State
23 Capitol Preservation Commission. The State Capitol Preservation
24 Commission shall meet at least once per quarter and at the call of

1 the chair as needed. A quorum of the voting members shall be
2 present for any action taken. A quorum is the majority of the
3 appointed voting members. The Commission shall be subject to the
4 Oklahoma Open Meeting Act.

5 E. The Commission functions performed by the Governor,
6 President Pro Tempore of the Senate, Speaker of the House of
7 Representatives, Secretary of State, and appointed Senators and
8 Representatives are additional functions of their other public
9 offices and duties.

10 SECTION 8. AMENDATORY 74 O.S. 2021, Section 4104, is
11 amended to read as follows:

12 Section 4104. A. The State Capitol Preservation Commission
13 shall provide oversight to the Office of Management and Enterprise
14 Services on duties for management and maintenance of the State
15 Capitol Building and shall:

16 1. ~~Research, plan, and have control of modifications and decor~~
17 ~~of the interior and exterior of~~ Approve the restoration,
18 preservation, enhancement, or modification of the State Capitol
19 Building, grounds, and the Governor's Mansion;

20 2. ~~Establish standards for the acquisition and display of works~~
21 ~~of art for public display in the Capitol~~ Review and approve the
22 annual budget and the long-range master plan submitted by the Office
23 of Management and Enterprise Services for the State Capitol
24 Building, grounds, and the Governor's Mansion and select such works.

1 ~~Such works of art shall be directly related to the history and~~
2 ~~culture of the State of Oklahoma;~~

3 3. ~~Establish procedures by which private contributions of~~
4 ~~suitable art can be accepted for the Capitol and the Governor's~~
5 ~~Mansion. The Commission is authorized to accept and make proper~~
6 ~~disposition of works of art as may be donated to the Commission and~~
7 ~~this state;~~

8 4. ~~Have authority to approve and submit to the Long Range~~
9 ~~Capital Planning Commission any proposed modification, alteration,~~
10 ~~renovation, repair, or construction on any part of the Capitol and~~
11 ~~the Governor's Mansion~~ Review and approve all requests for
12 preservation, restoration, enhancement, and modification to the
13 State Capitol Building, grounds, and Governor's Mansion submitted by
14 the Capitol Liaison. This review and approval process shall not
15 apply to actions deemed by the State Capitol Building Superintendent
16 to be maintenance necessary for the upkeep and function of the State
17 Capitol Building, grounds, and Governor's Mansion; and

18 4. Review and approve a security plan submitted by the
19 Department of Public Safety for the State Capitol Building, grounds,
20 and Governor's Mansion;

21 5. Have final approval authority for any plans or programs for
22 the restoration, preservation, or display of fine art programs in
23 and surrounding the State Capitol Building and the Governor's
24 Mansion;

1 6. Review and approve administrative rules submitted by the
2 Office of Management and Enterprise Services or the Capitol Liaison
3 concerning the State Capitol Building, its contents, and its
4 concerns;

5 7. Review and approve preservation zones and design standards
6 for the State Capitol Building, grounds, and Governor's Mansion;

7 8. Review and approve standards for the selection,
8 contributions, and acquisition of works of art and monuments for
9 permanent and temporary public display in the public spaces
10 controlled jointly by the Senate and the House of Representatives in
11 the State Capitol Building. Such works of art shall be directly
12 related to the history and culture of this state; and

13 9. Provide oversight and accountability inspections of
14 maintenance, restoration, preservation, enhancement, and
15 modification projects to ensure all projects conform to design
16 standards.

17 ~~B. The Long-Range Capital Planning Commission shall submit any~~
18 ~~capital construction or renovation project with respect to the State~~
19 ~~Capitol or the Governor's Mansion to the State Capitol Preservation~~
20 ~~Commission for its advisory opinion prior to consideration by the~~
21 ~~Long-Range Capital Planning Commission~~ On and after the effective
22 date of this act, the State Capitol Preservation Commission shall
23 assume oversight responsibility for restoration projects for the
24 State Capitol Building and the Governor's Mansion from the State

1 Capitol Repair Expenditure Oversight Committee created in Section
2 345 of Title 73 of the Oklahoma Statutes.

3 SECTION 9. AMENDATORY 74 O.S. 2021, Section 4105, is
4 amended to read as follows:

5 Section 4105. There is hereby established the position of the
6 Capitol Architect and Curator who shall:

7 1. Develop the technical plans and programs for consideration
8 by the State Capitol Preservation Commission ~~and the Long Range~~
9 ~~Capital Planning Commission~~ with regard to restoration, renovation,
10 and preservation of the State Capitol Building and the Governor's
11 Mansion;

12 2. ~~Develop and enforce standards adopted for acquisition and~~
13 ~~display of works of art in and surrounding~~ Advise the State Capitol
14 Preservation Commission regarding the space demands of the various
15 agencies in the State Capitol Building and the Governor's Mansion;

16 3. ~~Coordinate space demands of the various agencies in the~~
17 ~~Capitol and the Governor's Mansion;~~

18 4. Maintain a record of all structural and decor changes made
19 in the State Capitol Building and the Governor's Mansion; ~~and~~

20 5. ~~4.~~ Make recommendations to the State Capitol Preservation
21 Commission for design standards and of necessary action on proposed
22 restoration, preservation, enhancement, and modifications in decor
23 or design to ensure preservation and maintenance of the cultural and
24

1 historic integrity of the State Capitol Building and the Governor's
2 Mansion; and

3 5. Make recommendations to the State Capitol Preservation
4 Commission for preservation zones and design standards.

5 The Director of the Office of Management and Enterprise Services
6 may contract for the services of a Capitol Architect and Curator or
7 employ such an individual on either a full- or part-time basis.
8 Compensation for the position will be in accord with similar
9 professional positions in state government.

10 SECTION 10. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 4105.1 of Title 74, unless there
12 is created a duplication in numbering, reads as follows:

13 A. The State Capitol Building duties of the Office of
14 Management and Enterprise Services (OMES) are as follows:

15 1. OMES shall have the responsibility for maintenance,
16 restoration, preservation, enhancement, and modification of the
17 State Capitol Building, grounds, and Governor's Mansion including
18 facilities planning, facilities construction, and facilities
19 administration;

20 2. OMES shall be responsible for all maintenance duties
21 necessary to properly preserve and maintain the State Capitol
22 Building, grounds, and Governor's Mansion;

23 3. OMES shall be responsible for devising and developing
24 processes for tenants in the State Capitol Building to submit

1 requests for maintenance, restoration, preservation, enhancement,
2 and modification and evaluating such requests;

3 4. OMES shall manage each project, except in State Capitol
4 Building areas allotted to the Senate and the House of
5 Representatives as defined in Section 15.1 of Title 73 of the
6 Oklahoma Statutes, to ensure execution of the highest-quality work
7 product, time-cost schedules, and efficient contract performance;

8 5. OMES shall be responsible for producing an annual budget and
9 submitting it to the State Capitol Preservation Commission;

10 6. OMES shall be responsible for creating a long-range master
11 plan for the maintenance and upkeep of the State Capitol Building
12 and grounds which shall be submitted to the State Capitol
13 Preservation Commission every three (3) years;

14 7. OMES shall contract with the Oklahoma Tourism and Recreation
15 Department and Oklahoma Arts Council to operate the visitor center,
16 visitor relations activities, and tours in the State Capitol
17 Building;

18 8. OMES shall be responsible for operation of all dining and
19 vending services in the State Capitol Building and shall approve
20 food trucks and other mobile food preparation vehicles on the
21 grounds unless approved by the Legislature;

22 9. OMES shall be responsible for taking and approving
23 reservations in all meeting rooms and areas of the State Capitol
24 Building and grounds and shall seek approval from the Senate, House

1 of Representatives, or jointly for space allocated to the
2 Legislature by Section 15.1 of Title 73 of the Oklahoma Statutes;

3 10. OMES shall coordinate with the Oklahoma Arts Council for
4 curation of and care for artwork in the State Art Collection,
5 Capitol Art Collection, and monuments, memorials, and all temporary
6 exhibits in public areas at the State Capitol Building and grounds;

7 11. OMES shall be responsible for submitting proposed
8 administrative rules to the State Capitol Preservation Commission to
9 govern the execution of these duties;

10 12. OMES may collect rent from third-party vendors in the State
11 Capitol Building and proceeds from the sales of merchandise or
12 services rendered;

13 13. OMES shall have the authority to respond promptly to
14 emergency maintenance needs as they arise;

15 14. OMES shall serve as the primary contact for Americans with
16 Disabilities Act of 1990 (ADA) compliance for the State Capitol
17 Building; and

18 15. OMES shall collaborate with the Department of
19 Transportation for all maintenance, upkeep, and access to all
20 parking lots on the grounds of the State Capitol Building.

21 B. The Office of Management and Enterprise Services shall
22 employ all staff and consultants necessary to perform the duties of
23 OMES including, but not limited to, a licensed architect.

1 SECTION 11. AMENDATORY 74 O.S. 2021, Section 4108, is
2 amended to read as follows:

3 Section 4108. The provisions of Sections 4101 through ~~4107~~
4 4110.1 of this title shall apply to all modifications in the
5 structure or decor of the State Capitol Building, grounds, and ~~the~~
6 Governor's Mansion except for those immediate emergency repairs
7 needed to prevent loss or damage to property or to protect the
8 health and safety of the public during use of the building and any
9 art displayed on the grounds.

10 SECTION 12. NEW LAW A new section of law to be codified
11 in the Oklahoma Statutes as Section 4108.1 of Title 74, unless there
12 is created a duplication in numbering, reads as follows:

13 The Oklahoma Arts Council shall be given the responsibility to
14 acquire, maintain, preserve, or restore any state-owned art in the
15 State Art Collection or Capitol Art Collection that is in storage or
16 on display in the State Capitol Building and grounds. The council
17 is authorized to hold exhibitions and commissions to display art to
18 the general public. The Oklahoma Arts Council may request direct
19 appropriations or submit requests to the Office of Management and
20 Enterprise Services.

21 SECTION 13. AMENDATORY 74 O.S. 2021, Section 4109, is
22 amended to read as follows:

23 Section 4109. ~~By the order of the Director of the Office of~~
24 ~~Management and Enterprise Services, restoration and preservation~~

1 Maintenance, restoration, preservation, enhancement, and
2 modification projects of the State Capitol Building, grounds, or ~~of~~
3 ~~the~~ Governor's Mansion may be exempted from the provisions of the
4 Public Competitive Bidding Act of 1974, Section 101 et seq. of Title
5 61 of the Oklahoma Statutes. For exempted State Capitol Building or
6 Governor's Mansion construction projects, the Office of Management
7 and Enterprise Services shall select among contractors qualified by
8 past experience to conduct historical preservation projects.

9 SECTION 14. REPEALER 74 O.S. 2021, Sections 4106 and
10 4107, are hereby repealed.

11 SECTION 15. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

15 Passed the Senate the 27th day of March, 2025.

16
17 _____
18 Presiding Officer of the Senate

19 Passed the House of Representatives the ____ day of _____,
20 2025.

21
22 _____
23 Presiding Officer of the House
24 of Representatives

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